YOUTH JUSTICE FACILITY DEVELOPMENT BILL 2025 (No. 19)

Second Reading

[12.30 p.m.]

Mr JAENSCH (Braddon - Minister for Children and Youth) - Honourable Speaker, I move -

That the bill be now read a second time.

I bring to the House today a bill that supports the urgent delivery of the new Tasmanian Youth Justice Facility, which will provide for the fundamental rehabilitation and developmental needs of children and young people in detention in Tasmania and deliver on our commitment to close the Ashley Youth Detention Centre as soon as possible. The goal of the government's youth justice reform program is to improve community safety, reduce the involvement of children and young people in the youth justice system and improve outcomes for children and young people who do offend. The government's Youth Justice Blueprint is underpinned by a public health approach, which is focused on supporting children and young people to address the factors that led to their offending in the first place, thereby breaking the cycle of reoffending. This approach will drive the operational model of the new facility and the youth justice system within which it operates.

Establishment of the new facility is a priority project under the Youth Justice Blueprint and a prerequisite for the commission of inquiry's recommendation 12.1 to close Ashley Youth Detention Centre as soon as possible. Significant work has already been undertaken to accelerate the project, including: establishment of the Youth Justice Reform Taskforce, a youth justice reform expert panel, Aboriginal reference group and community reference group; development of a Tasmanian youth justice model of care; selection and public consultation on site options for the new facility; completion of site investigations, including Aboriginal heritage, threatened species and geotechnical surveys; engagement with local councils, neighbouring landowners, land users and businesses; confirmation of 466 Brighton Road,

Pontville as the site for the new facility; appointment of the lead design consultant and consultant team, and commencement of facility design; Cabinet approval of a revised project budget estimate; finalisation of the Tasmanian Youth Justice Facility Masterplan, which has now been released; commencement of a public engagement period on the master plan; and design and planning for site access, landscaping and enabling site services, which is currently underway.

The bill will enable the Tasmanian youth justice facility project to progress with greater certainty and reduce potential risks and significant delays to the project receiving approval under the *Land Use and Planning Approvals Act 1993* (LUPAA). We recognise the importance of ensuring that this legislation is narrowly targeted. It is limited in its operation to the facility, with clearly prescribed parameters to constrain the scope of development permitted under the act. To this end, the bill creates a new act that will enable the declaration of the project such that the act will only apply to this development on this site for the purpose of constructing a youth justice facility for, or on behalf of the state up to a certain size, both floor area and height, where appropriate set backs are provided and where onsite wastewater treatment is below a certain threshold.

The bill establishes a modified *Land Use Planning and Approvals Act* approval process to ensure the project can proceed with minimum further delay, while maintaining appropriate safeguards and public input. It ensures that the project will be approved by the planning authority and will exclude third-party appeals, which could potentially delay the project by up to 12 months.

Importantly, the bill provides for the development to be assessed by the Southern Midlands Council under normal Land Use Planning and Approvals (LUPA) process, including a public exhibition period and community representations. This means the community can still have their say and council will still assess the project against the planning scheme.

In a similar manner, the bill ensures a clear path to construction by removing the need for notification prior to protection work being undertaken under the *Building Act 2016*, and by preventing disputes about protection works from delaying construction.

The bill will also allow the Minister for Children and Youth to direct the Recorder of Titles to create, amend, rearrange or extinguish a folio of the Register to facilitate the consolidation of land titles, including 466 Brighton Road title, the site, and the 36 Rifle Range Road title for the access road to the site, following consultation with the Treasurer, the minister responsible for the *Crown Lands Act 1976* and the minister responsible for the *Youth Justice Act 1997*.

Finally, the bill provides that a resolution of both Houses of parliament will exempt the project from the requirements of the *Public Works Committee Act 1914*, given the assessment of the project's necessity or advisability has already been substantially met through the commission of inquiry itself and related parliamentary committees, which have upheld the need for this project to be completed as a matter of urgency.

This is a once-in-a-generation opportunity to replace a dated and inappropriate facility with a purpose-built environment that reflects contemporary thinking on youth justice, rehabilitation and trauma-informed care. There is significant public support and expectation for this project to be delivered as soon as possible, and significant work has been done to come

up with a site and a design that meets these expectations. This bill will ensure the facility can be delivered in 2027. Without it, the project could be delayed for a further 12 months or prevented from proceeding at all.

This bill has been open for public feedback and, through this process, the government received three submissions. The first, from the Southern Midlands Council, suggests that consideration be made to strengthen the provisions relating to the application of LUPA to avoid any doubt that the council must grant a permit for the proposed development. Additionally, the Southern Midlands Council raised that the current bill could require a permit for development that does not meet requirements of the planning scheme, and concerns regarding the works to Rifle Range Road, which the bill does not provide approvals for.

The submission from the Brighton Council expressed opposition to the bill on the basis that it could undermine confidence in Tasmania's planning system and that the removal of appeal rights contradicts planning principles, especially with regards to public participation in the process. Additionally, Brighton Council noted that unresolved issues remain around the facility's potential impacts on neighbouring land uses, questioning how these will be addressed if the approval is guaranteed.

The final submission, received from a group of legal academics, claims that the bill bypasses existing planning laws, limits council's role as planning authority, requires members of parliament to approve the development, imposes unreasonably short timeframes and related matters. It should be noted, however, that this submission does contain several errors and incorrect assumptions.

In response to the matters raised in these submissions, I outlined the following:

This bill provides for an assessment to be undertaken using the existing *Land Use Planning and Approvals Act* in a particular way for this specific project. The bill does not provide power to the parliament to approve the development. The final permit will be issued by the planning authority consistent with an ordinary development application. The role of planning authority remains largely as it would for any permitted application whereby the planning authority is responsible for the assessment of the application and any conditions or restrictions considered before the permit is issued.

The bill encourages public involvement and participation through the public exhibition process, whereby the planning authority will be able to receive and consider representations, consistent with the process for a discretionary planning application. It will be incumbent on the Tasmanian Government to provide sufficient information in the development application to address potential impacts and for these to be assessed by the planning authority as part of their consideration of the application.

Under the bill, the planning authority will have the same amount of time to consider and assess the development application as with any other discretionary development, including public exhibition.

The government proposes to amend the bill to include additional wording to confirm that a permit must meet the requirements of the Tasmanian Planning Scheme for the permit to be issued, which would be consistent with how any permitted application would be treated.

The works to Rifle Range Road are a matter for Brighton Council and, following further discussions with that council, I am advised that the bill does not need to be amended to include the proposed works to Rifle Range Road as they will be able to be dealt with via an exemption under LUPA from the requirement to seek development application. Public Works Committee exemption is being sought as the need to close the Ashley Youth Detention Centre and build a new facility is already widely acknowledged.

I also wish to advise that the government intends to move amendments to the bill as drafted in the committee stage.

In summary, these amendments are as follows:

(1) To amend the definition of relevant site to ensure that the bill continues to apply after adhering the two titles associated with 466 Brighton Road and 36 Rifle Range Road. This amendment is required as once the two titles are adhered, the existing title reference will no longer apply. This change will ensure that the bill continues to apply after adhering the titles.

(2) To increase the gross floor area to be inclusive of enclosed roof plant spaces, noting that this does not change the footprint of the facility from the master plan and the scope and bed numbers remain the same. This amendment is proposed for avoidance of doubt, noting variations in interpretation of gross floor area.

(3) To safeguard the 20 metre set back provision at the shared boundary with privately owned properties while simultaneously permitting the development to take place in closer proximity to the boundary between the two government owned parcels of land.

To clarify the requirement that approval must be granted is only where the requirements of the planning scheme can be met, in direct response to the matter raised by the Southern Midlands Council. The Council identified that under the prior wording, a permit must be granted regardless of whether the application met the requirements of the scheme. This change ensures that approval must be granted only where the requirements of the planning scheme can be met.

Honourable Deputy Speaker, I commend the bill to the House.

[redacted]